

separately stated and must “refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (Code Civ. Proc. § 431.30(g).)

With the exception of the 8th affirmative defense (Acts of Third Parties) and the 13th affirmative defense (Intervening / Superseding Cause), the facts related to the landlord-tenant relationship are not sufficient to establish any “new matter” that would constitute the bases for the alleged defenses. Further, as mentioned in the reply, none of the affirmative defenses are correlated with the two causes of action asserted in the complaint. In other words, the answer fails to clarify which of the claims is defeated by each defense.

The Court notes, however, that the Answer’s boilerplate defenses are as ubiquitous in civil litigation practice as they are legally impermissible, and the Court respectfully questions whether this motion is the best use of parties’ time and resources, or those of the Court. The Court acknowledges that it has been said that demurrers can be used to eliminate “boilerplate” affirmative defenses often appearing in answers (e.g., “waiver,” “estoppel,” “unclean hands”, etc.), but such demurrers have also been noted as rare, probably because they are not worth the cost when the same result (or arguably, better results) can be achieved by serving requests for admission or standard form interrogatories seeking the bases for the affirmative defenses. (See 1 Weil & Brown, Civil Procedure Before Trial § 7.35.1 (Rutter Group 2018); see also Chafetz, “Civil Law and Motion Practice in Contra Costa County,” Contra Costa Lawyer, November 2018, p. 33 [“As for demurrers to answers – really?”].)

The demurrer is overruled as to the eighth and thirteenth affirmative defenses. As for the remaining defenses at issue, the demurrer is sustained. However, based on the liberal standard for leave to amend, and since this is the first contested answer, defendant may amend. In amending the answer, the defenses shall each be correlated to the cause of action to which it is directed.

9. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: DETERMINATION OF SANCTIONS**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi (“Plaintiff”) filed a Motion to Compel Further Verified Responses on October 30, 2025 (the “Motion to Compel Further Responses”). The Motion to Compel Further Responses was set for hearing on March 2, 2026.

The Motion to Compel Further Responses was denied by the Court. See Order entered March 3, 2026 (the “March 3, 2026 Order”). The Court made certain findings and orders regarding the imposition of monetary sanctions as part of that ruling (the “Monetary Sanctions”). *Id.*

The determination of Monetary Sanctions was set over for further hearing on May 11, 2026, and a further briefing schedule set.

Sanctions

As ordered, defendant City of Richmond (the “City”) filed a supplemental declaration addressing the amount of Monetary Sanctions. See Declaration of Kevin D. Siegel in Support of Defendant City of Richmond’s Request for Sanctions filed April 15, 2026 (the “Supplemental Declaration”). That Supplemental Declaration seeks a total of \$4,971.00 in Monetary Sanctions. *Id.* at ¶¶8-11.

Plaintiff filed an Opposition on April 20, 2026 ("Opposition") which the Court has considered. He asserted, among other things, that "[a]ny procedural deficiencies were inadvertent and not made for purposes of delay or abuse of the discovery process." See Opposition, p. 1 *et seq.* He also contends the claimed Monetary Sanctions are excessive. *Id.* at p. 2 *et seq.* He requests that any ordered Monetary Sanctions be paid in monthly installments. *Id.* at p. 4.

The Court notes that the Supplemental Declaration fails to attach supporting billing statements or records, as ordered by the Court. See March 3, 2026 Order, p. 2, ¶12.a. Some breakdown of the time and billing incurred is addressed in the Supplemental Declaration.

Moreover, as Plaintiff contends, the Court finds the requested amount to be excessive. The Court directed the submittal of a supplemental declaration focused on a showing of any reasonable expenses, including attorney's fees or other costs, incurred as a result of the discovery misconduct. 6.8 hours to generate the further papers, including briefing was unnecessary and excessive. See Supplemental Declaration, ¶11.

Disposition

The Court further finds and orders as follows:

1. Plaintiff shall pay Monetary Sanctions to the City in the amount of **\$1,000.00**.
2. The Court finds that such Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by the City as a result of the conduct by Plaintiff. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the supporting declarations of the moving party and the Opposition. The Court, in its discretion, mitigated the amount of the sanctions for the reasons discussed above and in light of other further sanctions recently imposed by the Court. See Order dated May 5, 2026. The Court finds that the Monetary Sanctions imposed, as mitigated, are just and reasonable.
3. The Monetary Sanctions shall be paid by Plaintiff through regular monthly installments of \$250.00 beginning June 1, 2026, until paid in full.
4. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, RN and Rene Ochoa, RN in which defendant Dr. Joseph Toscano has filed a joinder. For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda H. Williams, in pro per, filed her complaint initiating this action on August 7, 2025. The complaint names as defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation,